

IN THE HIGH COURT OF DELHI AT NEW DELHI

Criminal Appeal No. 582/2024

Date of Decision: 14-02-2024

Mehta Traders ... Appellant

VERSUS

Sharma Enterprises ... Respondent

FACTS OF THE CASE:

1. Dishonour of cheque amounting to Rs 25 Lakhs under Section 138 of Negotiable Instruments Act, 1881.

ISSUES:

1. Presumption of legally enforceable debt under Section 139 of NI Act.

REASONING & DECISION:

The statutory presumption under Section 139 stands un rebutted by the respondent.

RATIO DECIDENDI:

Discharge of burden of proof requires probable defense, not mere denial.

DECISION:

Respondent convicted under Section 138 NI Act.